

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

**ANSWER OF RESPONDENT OCEAN CARRIER
EQUIPMENT MANAGEMENT ASSOCIATION INC.
TO THE VERIFIED COMPLAINT**

Respondent Ocean Carrier Equipment Management Association Inc. (“OCEMA”), by and through its undersigned counsel, hereby answers the Verified Complaint of INTERMODAL MOTOR CARRIERS CONFERENCE and AMERICAN TRUCKING ASSOCIATIONS, INC. (collectively, “Complainant”) as follows.

INTRODUCTORY STATEMENT AND GENERAL DENIAL

The Complaint, rather than being a clear and concise factual statement of Complainant’s claims, is an amalgam of conclusory statements, vague and undefined terminology, select quotations from hearsay documents, and legal conclusions. The Complainant’s lack of precision

and mischaracterizations of organizations impose an undue burden upon OCEMA to answer within the rules governing pleadings.

OCEMA accordingly generally denies the claims alleged by the Complainant and, sets forth the below specific responses to the numbered paragraphs of the Complaint.

1. The allegations in Paragraph 1 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient information or knowledge to admit or deny allegations against the other Respondents.

2. Admits that the Consolidated Chassis Management Pool Agreement was filed in 2006 with the Federal Maritime Commission (“Agreement”), which document speaks for itself, and that some OCEMA members sold chassis to third party providers. OCEMA denies the remaining allegations of Paragraph 2 of the Complaint.

3. The allegations in Paragraph 3 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient information or knowledge to admit or deny allegations against the other Respondents.

4. The allegations in Paragraph 4 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient information or knowledge to admit or deny allegations against the other Respondents.

5. The allegations in Paragraph 5 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA

lacks sufficient information or knowledge to admit or deny allegations against the other Respondents.

6. OCEMA lacks sufficient information or knowledge to admit or deny.

7. Admits that OCEMA is a District of Columbia non-profit corporation and denies the remaining allegations of the first sentence of Paragraph 7 of the Complaint. OCEMA admits the allegations in the second sentence of Paragraph 7 of the Complaint. Admits only that the OCEMA website referenced in the third and fourth sentences of Paragraph 7 of the Complaint speaks for itself. Admits that OCEMA reaches agreements on policies relating to the operation of Chassis Pools, and denies the remaining allegations in the fifth sentence of Paragraph 7 of the Complaint. Admits only that the OCEMA website referenced in the sixth sentence of Paragraph 7 of the Complaint speaks for itself. Lacks sufficient information or knowledge to admit or deny the seventh sentence of Paragraph 7 of the Complaint as it does not specify the “Respondent” to which it is referring. OCEMA denies the seventh sentence of the Complaint if OCEMA is the “Respondent” to which this allegation is referring.

8. OCEMA admits that CCM is a Delaware limited liability company with headquarters located at 500 International Drive, Suite 130, Budd Lake, NJ 07828. OCEMA denies that mwilson@ccmpool.com is the email address of CCM if CCM is the Respondent to which this allegation is referring. Admits only that the CCMP Agreement and CCM website referenced in Paragraph 8 of the Complaint speak for themselves.

9. OCEMA lacks sufficient information or knowledge to admit or deny.

10. OCEMA lacks sufficient information or knowledge to admit or deny.

11. OCEMA lacks sufficient information or knowledge to admit or deny.

12. OCEMA lacks sufficient information or knowledge to admit or deny.

13. OCEMA lacks sufficient information or knowledge to admit or deny.

14. OCEMA lacks sufficient information or knowledge to admit or deny.

15. OCEMA lacks sufficient information or knowledge to admit or deny.

16. OCEMA lacks sufficient information or knowledge to admit or deny.

17. OCEMA lacks sufficient information or knowledge to admit or deny.

18. OCEMA lacks sufficient information or knowledge to admit or deny.

19. OCEMA lacks sufficient information or knowledge to admit or deny.

20. The allegations in Paragraph 20 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations of the first sentence of Paragraph 20 of the Complaint and, as to the second sentence, admits only that the Shipping Act speaks for itself.

21. The allegations of the first, third and fourth sentences of Paragraph 21 constitute legal conclusions to which no response is required and, to the extent a response is required, OCEMA denies the allegations therein. As to the second sentence, admits only that FMC Agreement No. 011284 speaks for itself.

22. Admits only that the *Intermodal Factbook* referenced in Paragraph 22 of the Complaint speaks for itself and lacks sufficient information or knowledge to admit or deny the remaining allegations in Paragraph 22 of the Complaint.

23. Lacks sufficient knowledge or information to admit or deny the allegations of Paragraph 23 because it makes no allegations against or which are specific to OCEMA.

24. Lacks sufficient knowledge or information to admit or deny the allegations of Paragraph 24 because it makes no allegations against or which are specific to OCEMA.

25. Lacks sufficient knowledge or information to admit or deny the allegations of Paragraph 25 because it makes no allegations against or which are specific to OCEMA.

26. Admits only that the IANA publication referenced in Paragraph 26 of the Complaint speaks for itself and denies the allegations of the last sentence of Paragraph 26 of the Complaint.

27. Lacks sufficient information or knowledge to admit or deny the allegations of the first and last sentences of Paragraph 27 of the Complaint. Admits only that the *IANA* publication referenced in the second sentence of Paragraph 27 speaks for itself and lacks sufficient knowledge or information to admit or deny the remaining allegations of Paragraph 27 of the Complaint.

28. Admits only that the *Surface Transportation Board Oversight Hearing on Demurrage and Accessorial Charges* and *Operational and Commercial Changes in the Chassis World* referenced in the first and second sentences of Paragraph 28 speak for themselves. OCEMA lacks sufficient information or knowledge to admit or deny the remaining allegations of Paragraph 28 of the Complaint.

29. Admits that TRAC Intermodal, Direct ChassisLink Inc. and Flexi-Van lease chassis. OCEMA lacks sufficient information or knowledge to admit or deny the remaining allegations of Paragraph 29 of the Complaint.

30. Lacks sufficient knowledge or information to admit or deny the allegations of Paragraph 30 because it makes no allegations against or which are specific to OCEMA. OCEMA lacks sufficient information or knowledge to admit or deny the allegations of Paragraph 30 of the Complaint against the other Respondents.

31. OCEMA lacks sufficient information or knowledge to admit or deny.

32. Admits only that the documents referenced in Paragraph 32 of the Complaint speak for themselves and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

33. Admits only that the documents referenced in Paragraph 33 of the Complaint speak for themselves and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

34. Admits only that the documents referenced in Paragraph 34 of the Complaint speak for themselves and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

35. Admits only that the CCMP Agreement referenced in Paragraph 35 of the Complaint speaks for itself and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

36. Admits only that the documents referenced in Paragraph 36 of the Complaint speak for themselves and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

37. Admits only that the documents referenced in Paragraph 37 of the Complaint speak for themselves and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

38. Admits only that the Master Chassis Contribution Agreement referenced in Paragraph 38 of the Complaint speaks for itself and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

39. OCEMA lacks sufficient information or knowledge to admit or deny the allegations in the first sentence of Paragraph 39 of the Complaint because the terms therein are vague and

undefined. Admits only that the 2019 report of the Memphis Supply Chain Innovation Team referenced therein speaks for itself and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

40. Admits only that the statement of Commissioner Rebecca Dye referenced in Paragraph 40 of the Complaint speaks for itself and lacks sufficient knowledge or information to admit or deny the remaining allegations therein.

41. OCEMA lacks sufficient information or knowledge to admit or deny the allegations of Paragraph 41 of the Complaint because the allegations lack specificity and the terms therein are vague and undefined.

42. Admits only that the publication, *Interoperability Matters! The Interoperable Gray Pool Model, Enhancing Supply Chain Efficiencies*, speaks for itself. The last two sentences of Paragraph 42 constitute legal conclusions to which no response is required and, to the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient knowledge or information to admit or deny the remaining allegations of Paragraph 42 of the Complaint.

AS TO THE CLAIMS OF UNJUST AND UNREASONABLE CONDUCT

43. OCEMA denies the allegations of Paragraph 43 of the Complaint.

44. Admits only that the CCMP Operations Manual referenced in Paragraph 44 of the Complaint speaks for itself. Denies the second sentence of Paragraph 44 because the quotation from the CCMP Operations Manual is supplemented by bracketed commentary that renders the allegation incorrect and misleading. Further, the remaining allegations of Paragraph 44 as to OCEMA constitute legal conclusions to which no response is required and, to the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient

information or knowledge to admit or deny the allegations of Paragraph 44 of the Complaint against the other Respondents.

45. OCEMA lacks sufficient information or knowledge to admit or deny.

46. Admits only that a website listing exists at the address referenced in Paragraph 46 of the Complaint and that the CCM website speaks for itself, but lacks sufficient information or knowledge to admit or deny the remaining allegations of the first, second, and third sentences of Paragraph 46 of the Complaint. OCEMA lacks sufficient information or knowledge to admit or deny the allegations of the fourth and fifth sentences of Paragraph 46 of the Complaint. The allegations in the sixth sentence constitute legal conclusions to which no response is required and, to the extent a response is required, OCEMA denies the allegations therein.

47. Admits only that the Dye Statement referenced in the second and third sentences of Paragraph 47 of the Complaint speaks for itself. OCEMA lacks sufficient information or knowledge to admit or deny the allegations set forth in the first sentence of Paragraph 47 of the Complaint.

48. OCEMA lacks sufficient information or knowledge to admit or deny the allegations set forth in Paragraph 48.

49. OCEMA lacks sufficient information or knowledge to admit or deny the allegations of Paragraph 49 of the Complaint.

50. Admits only that the reference to *Interpretive Rule on Demurrage and Detention Under the Shipping Act* speaks for itself and lacks sufficient information or knowledge to admit or deny the allegations in the remaining allegations of Paragraph 50 of the Complaint.

51. Denies the allegations of the first sentence of Paragraph 51 of the Complaint and lacks sufficient information or knowledge to admit or deny the allegations of the second sentence of Paragraph 51 of the Complaint.

52. OCEMA lacks sufficient information or knowledge to admit or deny the allegations of Paragraph 52 of the Complaint.

53. The allegations of Paragraph 53 of the Complaint constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient information or knowledge to admit or deny the remaining allegations of Paragraph 53 alleged against the other Respondents.

54. OCEMA lacks sufficient information or knowledge to admit or deny.

55. OCEMA admits that the Pool-of Pools was established at the ports of Los Angeles and Long Beach but lacks sufficient information or knowledge to admit or deny the remaining allegations of the first sentence of Paragraph 55 of the Complaint because the terms therein are vague and undefined. As to the second sentence, admits only that the reference to the Pool of Pools website speaks for itself.

56. The allegations of Paragraph 56 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein. OCEMA lacks sufficient information or knowledge to admit or deny the remaining allegations of Paragraph 56 against the other Respondents. And, answering further, notes that the quotations and references from the Trac Intermodal and Pool of Pool websites speak for themselves.

**AS TO THE CLAIMS OF UNJUST AND
UNREASONABLE REGULATIONS AND PRACTICES**

57. Denies the allegations of Paragraph 57 of the Complaint as it consists of conclusory statements and legal conclusions and lacks sufficient specificity to enable OCEMA to form a response thereto.

58. OCEMA lacks sufficient information or knowledge to admit or deny.

59. OCEMA lacks sufficient information or knowledge to admit or deny.

60. OCEMA lacks sufficient information or knowledge to admit or deny.

61. OCEMA lacks sufficient information or knowledge to admit or deny.

62. OCEMA lacks sufficient information or knowledge to admit or deny.

63. OCEMA lacks sufficient information or knowledge to admit or deny.

64. OCEMA lacks sufficient information or knowledge to admit or deny.

65. OCEMA lacks sufficient information or knowledge to admit or deny.

66. OCEMA lacks sufficient information or knowledge to admit or deny.

67. OCEMA lacks sufficient information or knowledge to admit or deny.

68. OCEMA lacks sufficient information or knowledge to admit or deny.

69. OCEMA lacks sufficient information or knowledge to admit or deny.

**AS TO THE CAUSE OF ACTION THAT RESPONDENTS'
REGULATIONS AND PRACTICES VIOLATE 46 U.S.C. § 41102(C)**

70. OCEMA repeats and realleges each and every admission, denial, and denial of knowledge or information made in response to the allegations of Paragraph 1 through 69 of the Complaint as if the same were set forth at length herein.

71. The allegations in Paragraph 71 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

72. The allegations in Paragraph 72 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

73. The allegations in Paragraph 73 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

74. The allegations in Paragraph 74 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

75. The allegations in Paragraph 75 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

76. The allegations in Paragraph 76 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

77. The allegations in Paragraph 77 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

78. The allegations in Paragraph 78 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

79. The allegations in Paragraph 79 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

AS TO THE CLAIM OF INJURY

80. The allegations in Paragraph 80 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

81. The allegations in Paragraph 81 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

82. The allegations in Paragraph 82 constitute legal conclusions to which no response is required. To the extent a response is required, OCEMA denies the allegations therein.

AFFIRMATIVE DEFENSES

1. The Federal Maritime Commission lacks subject matter jurisdiction.
2. Complainant has failed to join indispensable parties.
3. Complainant has failed to state a claim upon which relief can be granted.
4. Complainant has failed to allege sufficient facts to state a claim for relief.
5. Complainant lacks standing.
6. Complainant did not suffer any actual injury.
7. Complainant fails to demonstrate causation for its alleged injury.
8. The Federal Maritime Commission lacks jurisdiction over Respondents, Ocean Carrier Equipment Management Association, Inc. and Consolidated Chassis Management, LLC.
9. Complainant's claims are barred in whole or in part by the doctrines of waiver, estoppel and/or laches.
10. Complainant's claims are barred by the doctrine of unclean hands.
11. Complainant's claims are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct by Complainant and/or its members.

WHEREFORE Respondent, Ocean Carrier Equipment Management Association Inc., prays that the Complaint in this proceeding be dismissed with prejudice.

Respectfully submitted,

COZEN O'CONNOR

By: 

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DATED: February 18, 2021

VERIFICATION

Jeffrey F. Lawrence hereby verifies as follows:

1. I am Secretary of Ocean Carrier Equipment Management Association Inc.
2. I am authorized to make this verification on behalf of the Answering Respondent.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: February 18, 2021

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'JFL', with a long, horizontal, wavy flourish extending to the right.

Jeffrey F. Lawrence,
Secretary

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 18th day of February, 2021, a true and correct copy of the Answer of each Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC; CMA CGM S.A.; COSCO SHIPPING Lines Co., Ltd.; Evergreen Line Joint Service Agreement; Hapag-Lloyd AG; HMM Co. Ltd.; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hail Lines Ltd.; Yang Ming Marine Transport Corp.; and Zim Integrated Shipping Services, Ltd. was served via electronic mail on:

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Wayne R. Rohde